IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE, LAW COURT COMPLEX COMMERCIAL DIVISION (10) HELD IN ACCRA ON MONDAY THE 10TH DAY OF NOVEMBER, 2025 BEFORE HER LADYSHIP JUSTICE ADELAIDE ABUI KEDDEY, J.

SUIT NO: CM/RPC/0493/2023

ISAAC OSEI-BONSU - PLAINTIFF

VS.

1. **DESIMONE LIMITED**
2. **M. BARBISOTTI & SONS LIMITED - DEFENDANTS**

JUDGMENT

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[1] The Plaintiff, a Senior Legal Practitioner registered under the Legal Profession Act of Ghana, 1960 (Act 32) commenced the instant action against the Defendants on 2nd June 2023.

[2] The Defendants are Limited liability Companies registered under the laws of Ghana.

[3] It is the case of the Plaintiff that he entered into a Legal Retainer Agreement with the Defendants on 1st August, 2021 to provide legal services

and representation as may be required in consideration of a monthly retainer fee of GHS50,000.00 with other expenses where necessary.

[4] Plaintiff avers that Defendants over time disregarded invoices issued to them even though Plaintiff continued to work for them.

[5] After failing to pay up for several months, Plaintiff terminated the Retainer Agreement between the parties and instituted the instant action for recovery of unpaid legal fees.

[6] Plaintiff is praying for the following reliefs against the Defendants jointly and severally:

a. The payment of the sum of seven hundred and thirty-one thousand four hundred Ghana Cedis (GHS731,400.00).
b. Interest on the above sum at the prevailing bank rate from 14th March 2023 until date of final payment.
c. Costs including solicitors' fees; and
d. Any other remedy as the Court may see fit.

[7] After service of the Writ of Summons and Statement of Claim on the Defendant, Defendants entered appearance on 24th August, 2023 and filed their Statement of Defence on 6th September, 2023.

[8] It is the case of the Defendants that they are not indebted to Plaintiff and that the Retainer Agreement between the parties terminated in February

2022 as a matter of course following the suspension of the National Cathedral Project.

[9] Defendants aver that the work done by Plaintiff post February 2022 was governed by a separate and distinct agreement. Thus the Plaintiff is not entitled to legal fees for the period of the suspension of the National Cathedral Project.

ISSUES FOR DETERMINATION

[10] After the parties failed to settle at the Pre-Trial Conference, three main issues were adopted by the court for determination as follows:

(1) Whether or not the retainer agreement between the parties remained valid until same was formally terminated by the Plaintiff

(2) Whether or not the parties entered into a separate and distinct agreement for legal services outside the retainer agreement between them.

(3) Whether or not the Defendant breached the retainer agreement between the parties.

THE BURDEN OF PROOF AND STANDARD OF PROOF

[11] Section 10(1) of the Evidence Act, 1975 (NRCD 323) explains the burden of proof as the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the court which

requires a party to raise a reasonable doubt concerning the existence or non-existence of a fact by a preponderance of the probabilities in civil trials.

[12] Preponderance of the probabilities means that degree of certainty of belief in the mind of the tribunal of fact or the Court by which it is convinced that the existence of a fact is more probable than its non-existence.

[13] The burden of proof and standard of proof in civil cases is summed up in the Supreme Court case of ***Gihoc v Hanna Assi [2005-2006] SCGLR 458 at 485*** *by* Her Ladyship Sophia Akuffo JSC in her judgment thus:

> *"Since the enactment of NRCD 323, therefore, except otherwise specified by statute, the standard of proof (the burden of persuasion) in all civil matters is by a preponderance of the probabilities based on a determination of whether or not the party with the burden of producing evidence on the issue has, on all the evidence, satisfied the judge of the probable existence of the fact in issue …hence, by virtue of the provisions of NRCD 323, in all civil cases, judgment might be given in favour of a party on the preponderance of the probabilities…"*

[14] In explaining the burden of proof in civil trials, the Supreme Court held in the case of ***Poku v Poku [2007 -2008] 2 SCGLR 996 at 1022*** per Georgina Wood CJ (as she then was) thus:

> *"…generally, the burden of proof is therefore on the party asserting the facts, with the evidential burden shifting as the justice of the case demands. The*

standard or degree of proof must also necessarily be proof of the preponderance of the probabilities within the meaning of section 12 (2) of the Evidence Act, 1975 (NRCD 323)."

[15] Likewise, the Supreme Court held in the case of ***Klah v Phoenix Insurance Company Limited [2012] 2 SCGLR 1139***, thus:

> *"Where a party makes an averment capable of proof in some positive way e.g. by producing documents, description of things, reference to other facts, instances and his averment is denied, he does not prove it by merely going into the witness box repeating the averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which this Court can be satisfied that what he avers is true".*

[16] In the case of ***In Re Ashalley Botwe Lands [2003-2004] SCGLR 420***, the Supreme Court held that whereas the onus is on a Plaintiff to lead evidence that would tilt the balance of probabilities in his favour, the burden of producing evidence is not fixed but shifts from party to party depending on the issue asserted or denied. See Section 11(1) and 12(1) of NRCD 323.

[17] See also the case of ***Ackah v Pergah Ltd and Others [2010] SCGLR 728*** and ***Aryeh Akakpo vs. Yaa Iddrisu [2010] SCGLR 891***.

<u>THE EVIDENCE ADDUCED AT THE TRIAL</u>

[18] Mr. Manuel Sawyerr Esq testified on behalf of the Plaintiff. His Witness Statement is dated 17th October, 2024.

[19] In support of his case, Plaintiff tendered a Retainer Agreement dated 1st August 2021 marked as ***Exhibit "A"***, an Email dated 13th October 2022 from Plaintiff's representative to Defendants including accrued invoices marked as ***Exhibit "B"***, and an Email dated 21st November 2022 from Plaintiff's representative to Defendants with letter attached requesting payment of the outstanding legal fees marked as ***Exhibits "C" and "C1"***.

[20] Plaintiff also tendered an Email dated 30th November 2022 from Plaintiff's representative to Defendants with a Notice of Termination and a Demand Notice attached marked as ***Exhibits "D", "D1" & "D2"***, and an Email dated 14th March 2023 from Plaintiff's representative with a Final Demand Notice and Ghana Revenue Authority Tax Invoices attached marked as ***Exhibits "E", "E1" and "E2"***.

[21] On the other hand, Federico Desimone, the Managing Director of 1st Defendant Company testified on behalf of 1st and 2nd Defendants. His Amended Witness Statement was 30th May, 2025.

[22] In support of their case, the Defendants tendered the Legal Retainer Agreement marked as ***Exhibit "1"***, Publication by Herald Ghana, marked as ***Exhibit "2"***, Letter dated 9/02/2022 from Ribade to Adjaye Associates marked as ***Exhibit "3"***, Citi News Room Publication dated 31st August 2022 marked as ***Exhibit "4"***, Email dated 21st February from Plaintiff representative to

Defendants approving Defendants request for a discount marked as ***Exhibit "5"***, and Notice of Termination dated 30th November 2022 marked as ***Exhibit "6"***.

EVALUATION OF EVIDENCE

[23] I would now proceed to determine the issues as set down.

Whether or not the retainer agreement between the parties remained valid until same was formally terminated by the Plaintiff.

[24] Plaintiff representative testified that the retainer agreement between the parties remained valid until it terminated same per its Notice of Termination dated 30th November 2022.

[25] That, the Retainer Agreement was neither lawfully terminated by the Defendants nor terminated as a matter of course in respect of the three modes of termination under the Retainer Agreement, specifically Clause 1, Clause 5a and Clause 5b.

[26] The Plaintiff contends that he raised various invoices during the tenure of the Retainer Agreement which was paid by Defendants though the payments were usually delayed.

[27] That overtime, the pace of payments reduced significantly till Defendants began disregarding invoices sent by Plaintiff in respect of the monthly retainer fees.

[28] Thereafter the Defendants paid an amount of GHS17,000.00 and later an amount of GHS200,000.00 towards reducing their indebtedness.

[29] On 13th October, 2022 he sent an email to the Defendants including invoices covering outstanding indebtedness as totaling GHS715,000.00 (including statutory taxes and levies) as of 31st October, 2022.

[30] The Plaintiff wrote to Defendants on 21st November, 2022 as a reminder to settle their outstanding debts but Defendants continued to ignore letters, phone calls and text messages from Plaintiff until Plaintiff had to terminate same.

[31] Plaintiff issued a Notice of Termination dated 30th November, 2022 with three (3) months' notice in accordance with the provision of the Retainer Agreement. Thereafter Plaintiff issued a Final Demand Notice to the Defendant for an accrued amount of GHS731,400.00 in respect of unpaid retainer fees and statutory taxes and levies.

[32] On the other hand, Defendants representative testified that after the award of the contract for the erection and construction of the National Cathedral to the consortium they began to have a few challenges with matters relating to their rights as Shareholders and Subcontractors so they sought for legal advice from Plaintiff.

[33] Thereafter, they entered into a 3 year Retainer Agreement with Plaintiff and same was executed by the Defendants as one party. That the payment

liability of GHS50,000.00 as retainer fees was joint and only in respect of their joint operations in the National Cathedral as referred in paragraph A of E recitals.

[34] Defendants contend that they have fully discharged any and all payments obligations to the Plaintiff and that Plaintiff's writ which is hinged on the terminated Retainer Agreement can only be ascribed to a misunderstanding as the most notable clause was that of the suspension of works on the cathedral project being the basis of the termination of the Retainer Agreement.

[35] That for all intents and purposes the works at the National Cathedral were the only works or "business operations" they had going on at the time of their engagement with Plaintiff.

[36] Defendants contend that they received notification on 7th February, 2022 from their employers that work had been suspended.

[37] It is the case of the Defendants that though the Retainer Agreement stipulated that "the retainer relationship may be terminated by either party by giving notice in writing at least three months in advance", the same Agreement had a clause 5b which stipulated that the said agreement was to be deemed as terminated as a matter of course if and when the contracted works at the National Cathedral was suspended.

[38] That, the idea of commercial frustration or force majeure could only apply to the National Cathedral as stated in Clause 5(b). Therefore the Retainer terminated as a matter of course by the end of April 2022.

[39] Defendants' representative further testified that Defendants informed the Plaintiff about the suspension of the National Cathedral and that at the time Plaintiff began to make demands on them in respect of the "outstanding retainer fees", they believed and knew that the Retainer was terminated as a matter of course.

[40] Defendant representative further testified that the suspension and termination of works on the Cathedral happened in February 2020 with the news in both electronic and print media.

[41] Thus, the Defendants are urging the Court to take Judicial Notice of the suspension of the National Cathedral product under Section 9 of the Evidence Act, 1975 (NRCD 323).

[42] The Retainer Agreement (See ***Exhibits "A" and "1"***) with respect to the scope and clauses on termination reads as follows:

> *"… NOW THEREFORE, THIS AGREEMENT WITNESS AS FOLLOWS:*
>
> *1. <u>THE RETAINER</u>*
>
> *The client by these presents hereby retains the Solicitor to provide legal services to and make legal representations for and on behalf of the client and its business as the client may from time to time require from the solicitor for*

a period of three (3) years, commencing the 1st day of August 2021, subject to renewal at the instance of the client for an additional two (2) years, or such other period as the Parties may agree.

The client shall provide a minimum of three (3) months' notice in writing of an intention to renew the relationship…

Clause 5

TERMINATION/ACCRUED RIGHTS

(a) Either party shall be entitled to terminate this Agreement by written notice to the other party if the other party:

i. Ceases to carry on business or is prevented for any reason such as revocation of its license or authorization from carrying on its business; or

ii. Becomes bankrupt or insolvent or threatens to go into liquidation; or

iii. Commits a breach of any of the provisions of this Agreement or defaults in the performance of any obligation hereunder and fails to remedy same within Thirty (30) days.

b. This Agreement shall also terminate as a matter of course in any event of force majeure, supervening impossibility or commercial frustration, which causes the client or solicitor or both to suspend their business operation for any period in excess of Thirty (30) days.

Provided, however, that in any event of force majeure, supervening impossibility or commercial frustration, the party suffering from such event of force majeure, supervening impossibility or commercial frustration, ***shall endeavor*** *to advice the other party of such event as expeditiously as is reasonably practical.*

c. *The termination of this Agreement shall not affect the accrued rights of either party.*

[43] First and foremost, parties agreed under a) that any of the parties shall be entitled to terminate the Agreement by a written notice to the other party if the other party either ceases to carry on business or is prevented for any reason such as revocation of its license or authorization from carrying on its business; or becomes bankrupt or insolvent or threatens to go into liquidation; or commits a breach of any of the provisions of the Agreement or defaults in the performance of any obligation under the agreement and fails to remedy same within Thirty (30) days.

[44] Secondly, the parties agreed that the agreement between the parties shall also terminate as a matter of course in any event of force majeure, supervening impossibility or commercial frustration, which causes the client or solicitor or both to suspend their business operation for any period in excess of Thirty (30) days, provided, that the party suffering from any of the stated conditions being either, event of force majeure, supervening impossibility or commercial frustration, shall endeavor to advice the other party of such event as expeditiously as is reasonably practical.

[45] It is clear from the Retainer agreement that either party can terminate the Retainer. However, the agreement provides conditions and a procedure to follow in a bid to terminate.

[46] In the instant case, the Defendants are contending that the agreement terminated as a result of commercial frustration and as a matter of course.

[47] In his written address, Counsel for Defendants submitted that the 1st and 2nd Defendants did not engage the Plaintiff in their individual and separate capacities but only in respect of their conjoined interest in matters on the National Cathedral.

[48] Therefore, any reference to "carry on business operations" in Exhibit A is in connection with the National Cathedral while the provisions relating to *"carry on business"* in Exhibit A relate to the Defendants separate and individual personalities on account of the conditions appurtenant to the use of those expressions.

[49] Counsel for Defendants submitted that the Defendants interpreted the phrase *"ceases to carry on business or is prevented for any reason such as revocation of its license or authorization from carrying on its business"* to mean that 1st and 2nd Defendant must cease to carry on business in their individual, distinct and separate entities.

[50] In rebuttal, Counsel for Plaintiff in her address submitted that Clause 5b did not limit the scope of the phrase "suspend their business operation for

any period in excess of Thirty (30) days" to the business of the National Cathedral alone.

[51] That the said phrase in its ordinary sense refers to the suspension or temporary halt of the core business operations of the parties to the Retainer Agreement as going concerns, which, in the case of the plaintiff, refers to the practice of law as a licensed legal practitioner and in the case of the Defendant, the business of building construction and civil engineering simplicita.

[52] Counsel for Plaintiff submitted that the Defendant never suspended their business operation for any period in excess of Thirty (30) days so as to satisfy the first leg of the requirements of Clause 5b of the Retainer Agreement.

[53] What is the ordinary meaning of the phrase 'suspend their business operations for any period in excess of Thirty (30) days?

[54] In the English case of ***Grey v Pearson (1857) 6 HL Cas 61*** as cited by Counsel for Plaintiff, Lord wensleydale stated thus:

> "…the grammatical and ordinary sense of the words is to be adhered to unless that would lead to some absurdity, or some repugnance or inconsistency with the rest of the instrument, in which case the grammatical and ordinary sense of the words may be modified, so as to avoid that absurdity and inconsistency, but no farther".

[55] The Retainer Agreement itself states that:

> "the client by these presents hereby retains the Solicitor to provide legal services to and make legal representations for and on behalf of <u>the client and its business</u> as the client may from time to time require from the solicitor for a period of three (3) years, commencing the 1st day of August 2021, subject to renewal at the instance of the client for an additional two (2) years, or such other period as the Parties may agree".

[56] The Defendants are required to prove that their business, which in my view covers their entire business, being the business of building construction and civil engineering in general and not specifically the National Cathedral Project.

[57] In any case, the Defendants tendered Exhibit "3" to support their assertion of the suspension of the National Cathedral Project.

[58] ***Exhibit "3"***, which is a letter dated 9th February, 2022 tendered by the Defendant to support its assertion that the project was suspended states as follows:

> …Attention Kofi Bio
>
> *"… such suspension shall include, but not be limited to:*

1. *A reduction of placing of purchase orders or receiving of goods including but not limited to items related to reinforcing cement, aggregate and the like*
2. *A reduction of all activities of nominated subcontractors including but not limited to, earthling, water proofing, electrical, and the like.*
3. *A reduction of site activities including staff*
4. *A reduction of concrete progress the contractor shall attempt to cast the first core.*
5. *A reduction of progress on blinding, reinforcing and other construction activities.*

The contractor shall continue with the activities of:

a) *Security measures*

b) *Safety measures*

c) *Site maintenance shall continue but be limited to necessary items…*

Signed by Grant Ramsay, Project Manager.

[59] In fact, there is no indication on the face of Exhibit "3" that Defendants are the authors and nothing shows that the Defendants are the intended recipients.

[60] There is also no indication that the Defendants shared Exhibit 3 or any other information with the Plaintiff to indicate that their business had ceased for thirty days or more.

[61] Rather, the Defendant representative admitted in the course of the trial that additional work was done by Plaintiff even after their supposed automatic termination of the Agreement.

[62] The Defendants were required by the terms of the Retainer Agreement to give a written Notice to the Plaintiff to indicate their intention of terminating the Retainer Agreement upon receipt of the said notification if indeed it was so.

[63] In other words, the Defendants were mandated to serve notice of their intention to terminate or advise the Plaintiff of its termination of the Retainer Agreement as a matter of course in the event of force majeure, supervening impossibility or commercial frustration, which caused Defendants to suspend their business operation for any period in excess of thirty (30) days expeditiously as was reasonably practical. That notice was to be given by either party to the other, and not through the media or any other mode.

[64] From the evidence adduced at the trial, there is no indication that the Defendant served a Notice of Termination on the Plaintiff. Rather, the evidence before the court establishes that the Plaintiff served same on Defendant.

[65] I must also mention that the previous Counsel for the Defendants in the course of the trial made a prayer to the Court to take judicial notice of the suspension of the National Cathedral Project.

[66] In response to same, counsel for Plaintiff submitted that by the provisions of the Retainer Agreement and the scope of work, the Plaintiff was not required to monitor media reportage in order to keep track of the progress of work at the project site. Rather, the Defendants were to apprise the Plaintiff on same.

[67] **Section 9 of NRCD 323** states as follows:

> (1) This section governs the taking of judicial notice of facts in issue or facts which are relevant to facts in issue.
>
> (2) Judicial notice can be taken only of facts which are either:
>
> (a) so generally known within the territorial jurisdiction of the court, or
>
> (b) so capable of accurate and ready determination by resort to sources whose accuracy cannot reasonably be questioned,
>
> that the fact is not subject to reasonable dispute.
>
> (3) Judicial notice may be taken whether requested or not.
>
> (4) Judicial notice shall be taken if requested by a party and the requesting party:

(a) gives each adverse party fair notice of the request, through the pleadings or otherwise, and

(b) supplies the necessary sources and information to the court.

(5) A party shall be entitled upon timely request to an opportunity to present to the court information relevant to the propriety of taking judicial notice and the meaning of the fact to be noticed.

(6) Judicial notice may be taken at any stage of the action…

[68] In the case of ***Mensah and Others v The Republic [1979] GLR 523-551***, her ladyship Cecilia Koranteng Addo J had this to say on Judicial Notice:

"As Lord Sumner put it in Commonwealth Shipping Representative vs.. Peninsular and Oriental Branch Service [1923] A.C. 191 at P. 212, H.L.,

"Judicial notice refers to facts, which a judge can be called upon to receive and to act upon, either from his general knowledge of them, or from inquiries to be made by himself for his own information from sources to which it is proper for him to refer."

[69] Therefore, the issue or fact in contention must be evident to the court that the matter is so notorious not to be the subject of dispute among reasonable men, or that the matter is capable of immediate accurate demonstration by resorting to readily accessible sources of indisputable accuracy.

[70] It is my view that the purported suspension of the National Cathedral Project raises a lot of debates and uncertainty. Thereafter, I cannot take judicial notice of same.

[71] The Plaintiff tendered documents to establish that he had to comply with the Agreement and terminate the Retainer Agreement after Defendants breached same.

[72] In that regard, ***Exhibit D***, which is an email with Notice of Termination Letter attached read as follows:

> *"… Notice of Termination.*
>
> *We write to inform you of our decision to terminate the Legal Retainer Agreement ("the Agreement") between us entered into on 1st August, 2021.*
>
> *This termination is pursuant to clause 5 of the said Agreement and is predicated upon your breach of the provisions of same, relative to the non-payment of retainer fees, which breach you have been copiously notified of, in accordance with the relevant provisions of the Agreement, and have thus failed to remedy.*
>
> *We are therefore left with no option but to serve you this Notice and in accordance with clause 1 of the Agreement, provide herewith our three (3) months advance notice.*
>
> *Pursuant to the preceding paragraph, the effective date of termination is therefore 28th February 2023, upon which date the Agreement officially*

terminates, and a final invoice for the period will be submitted for settlement…"

[73] Then again, the relevant part of the Final Demand Notice dated 7th March 2023 is reproduced as follows:

"… Furthermore, the effective date of termination, per the Notice of Termination was stated as 28th February 2023, in accordance with the provisions of the Agreement, which require that you be given three (3) months' notice prior to termination i.e. in this case, 1st December 2022 to 28th February 2023.

For the above mentioned three-month period, per the monthly retainer fees of fifty thousand Ghana Cedis (GHS50,000.00) stipulated in the Agreement, the total amount due, <u>excluding</u> Statutory taxes and levies, is one hundred and fifty thousand Ghana Cedis (GHS150,000.00).

Bearing in mind your outstanding indebtedness of four hundred and fifty thousand Ghana cedis (GHS450,000.00) as at 30th November 2022, your outstanding indebtedness of MPAC, as at the effective date of termination (28th February 2023), excluding Statutory taxes and levies is Six hundred thousand Ghana Cedis (GHS600,000.00).

Attached to this Notice is a VAT Invoice covering your total outstanding indebtedness as of 28th February 2023 including Statutory taxes and levies

which amounts to Seven hundred and thirty-one thousand, four hundred Ghana Cedis (GHS731,400.00).

Given your refusal to settle your outstanding debts despite several notices, we hereby DEMAND the immediate payment of the sum of seven hundred and thirty-one thousand four hundred Ghana cedis (731,400.00) within Seven (7) days from receipt of this Notice, failing which we will commence legal action without further recourse to you…"

[74] It is the duty of the court to respect the sanctity of contracts. In the case of ***Allan Sugar (Products) Ltd vs.. Ghana Export Co Ltd [1987-88] GLR 922,*** the Supreme Court held thus:

"It is no function of the court to rewrite an agreement for the parties by inserting terms that would have been beneficial but were overlooked especially when such interpolation would amount to an interference with a third party's bargain".

[75] The Supreme Court held in the case of ***Muller vs.. Home Finance Co Ltd [2012] 2 SGLR 1234 @ 1247*** thus:

"…it is desirable for people to use contracts in the business world to regulate and control their dealings with one another, then it is the duty of the law courts to give teeth to these contracts to enable them bite and bite very hard when the contracts are honoured in the breach by the parties. Adults who enter into legally enforceable contracts, conscious of the consequences whenever

there is a breach, must be held accountable for such lapses. If the law courts are not careful in providing adequate remedies whenever a breach of contract occurs, then there is likely to be the risk that parties may play into the theory of efficient breach. Contracts shall be honoured by the courts more in their observance than in their breach. Unless such a decision is given by the courts, the very usefulness of contracts as legal instruments could fall into disrepute".

[76] It is therefore established as a fact that the Retainer Agreement (Exhibits "A" and "1") between the parties remained valid until same was formally terminated by the Plaintiff.

Whether or not the parties entered into a separate and distinct agreement for legal services outside the retainer agreement between them

[77] It is the case of the Defendants that having intimated to Plaintiff that they found the fees a little too expensive before the termination, the Plaintiff in February 2022 wrote to Defendants making a New Offer of GHS40,000.00 per month couching same as a "discount". Therefore, the new offer was indicative that the Retainer Agreement was terminated.

[78] Defendants contend that thereafter it engaged the Plaintiff on a case by case basis to place an injunction on a third party which was done by Plaintiff. Therefore, the said engagements formed a separate and distinct engagement.

[79] This assertion was denied by the Plaintiff. Plaintiff contends that the parties did not execute any new agreement after the discounted legal fees of

GHS40,000.00. Therefore the only enforceable Agreement binding on the parties is Exhibits "A" and "1".

[80] The burden of proving that there was a separate and distinct agreement lies on the Defendants. Defendants are required to produce sufficient evidence to prove same.

[81] The Supreme Court speaking through Adinyira JSC (as she then was) in the case of ***Dzaisu vs. Ghana Breweries Limited [2007- 2008] SCGLR 539 at 541***, held thus:

> *It is trite law that a bare assertion by a party of his pleadings in the witness box without proof did not shift the evidential burden onto the other party.*

[82] In fact, ***Clause 7 of Exhibits "A" and "1"*** headed *ENTIRE UNDERSTANDING/VARIATION* is relevant to the resolution of the instant issue. It states as follows:

a. *This agreement embodies the entire understanding of the parties in respect of the subject matter herein and there are no promises, terms, conditions, obligations, oral or written, express or implied other than those contained in this Agreement.*
b. *No variation or amendment of this Agreement, oral promise, or commitment relating to this Agreement shall be valid* <u>*unless*</u> *same is reduced into writing and signed by or on behalf of both parties.*

[83] It is evident from Clause 7 that the parties themselves agreed to be bound by the terms of the Retainer Agreement upon execution of same since there were no other promises, terms, conditions, obligations, oral or written, express or implied outside the context of the Retainer Agreement.

[84] The parties further agreed that no variation or amendment of the said Retainer Agreement, oral promise, or commitment relating to the said Agreement shall be valid unless same was reduced into writing and signed by or on behalf of both parties.

[85] At the trial, no other Agreement was tendered by the Defendants to establish that there was a separate and distinct agreement governing the work done by the Plaintiff in respect of the Injunction Application, pre-financing of same and the legal consultation.

[86] In fact, ***Exhibit "5"*** which is an email from Defendants representative to Abrie Van Wyk, Marcello Borbisotti and from Plaintiff representative dated 21st February, 2022 to Defendants' representative states as follows.

> *"… Good afternoon Federico,*
>
> *… Further to our meeting last week, we referred your request for a review of the terms of our retainer Agreement to the firm's Fee Waiver Committee.*
>
> *The committee has approved a 20% reduction to GHS40,000.00 per month.*
>
> *This is the maximum they can do at this time.*

Please find attached the amended Amendment.

We hope you find this acceptable and are grateful for your cooperation.

Many thanks,

Manuel Sawyerr…"

[87] There is no correspondence before the court to show that upon the receipt of this email, the parties executed another Agreement so as to dispense with the Retainer Agreement.

[88] Counsel for Plaintiff submitted that an offer of a discount cannot by any stretch of imagination be construed as a termination of a subsisting agreement simply on account of one party's refusal, failure or neglect to respond to that offer.

[89] Having failed to adduce any evidence to prove its assertion at the trial, it is established as a fact that there was no separate and distinct agreement for legal services outside the retainer agreement between the parties.

Whether or not the Defendants breached the retainer agreement between the parties

[90] I have already established that both parties are bound by the terms of the Retainer Agreement.

[91] At the trial, the Plaintiff adduced sufficient evidence to show that the Defendants have failed to liquidate its indebtedness of Seven Hundred and

Thirty-One Thousand, Four Hundred Ghana Cedis (GHC731,400.00) as of 14 March 2023 for the scope of work done under the Retainer Agreement.

[92] The Defendants on the other hand did not adduce any evidence to establish the contrary.

[93] I therefore hold that the failure or refusal of the Defendants to liquidate their indebtedness to Plaintiff amounts to a breach of the Retainer Agreement between the parties.

CONCLUSION

[94] On the totality of the evidence adduced at the trial, It is my considered view that the Plaintiff has proved his case against the Defendants on a balance of probabilities.

[95] I hereby enter judgment for Plaintiff and make the following orders against the Defendants jointly and severally:

a. **Recovery of Seven Hundred and Thirty-One Thousand Four Hundred Ghana Cedis (GHS731,400.00) from the Defendants by the Plaintiff.**
b. **Interest on Seven Hundred and Thirty-One Thousand Four Hundred Ghana Cedis (GHS731,400.00) at the prevailing Commercial Bank rate from 14th March 2023 until date of final payment.**

c. **Costs of Eight Thousand Ghana Cedis (GHS8000.00) awarded in favour of the Plaintiff assessed against the Defendants.**

Cases

Ackah v Pergah Ltd and Others [2010] SCGLR 728 6
Allan Sugar (Products) Ltd vs.. Ghana Export Co Ltd [1987-88] GLR 922..... 23
Aryeh Akakpo vs. Yaa Iddrisu [2010] SCGLR 891..... 6
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Statutes

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(sgd.)

……..

JUSTICE ADELAIDE ABUI KEDDEY
JUSTICE OF THE HIGH COURT
COMMERCIAL DIVISION

Counsel:

Catherine Djan, Esq., holding brief for Lily Ntreh, Esq., for Plaintiff - Present

Samuel Kojo Andrews, Esq., for Defendants - Present